

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, June 24, 2025. Contents noted. Recommend approval of the negotiated settlement agreement in DADS No. 2024-31750 against PO Brian Ferguson, Tax Registry No. 938470. The case was conferenced on June 24, 2025, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved the negotiated penalty of Command Discipline Schedule "B" and the forfeiture of TEN (10) vacation days regarding DADS No. 2024-31750, after accepting the finding(s) of substantiation of the allegations contained in the Charges and Specifications. Charges and specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-030532BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, FERGUSON	FIRST BRIAN	M.I.	COMMAND 006
SHIELD NO. 6843	TAX REGISTRY NO. 938470	SOCIAL SECURITY NO.	DATE APPOINTED 07/11/2005	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Brian FERGUSON, on or about May 15, 2023, at approximately 0833, while assigned to F S S and on duty, in the vicinity of § 87(2)(b) New York County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that, PO FERGUSON, threatened to remove an unidentified individual to the hospital, without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated.
2. Police Officer Brian FERGUSON, on or about May 15, 2023, at approximately 0833, while assigned to F S S and on duty, in the vicinity of § 87(2)(b) New York County, wrongfully used force, in that, PO FERGUSON he pushed an unidentified individual against a wall without police necessity.	DISMISSED	VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.


FIRST DEPUTY COMMISSIONER7/19/25
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER7/23/25
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, July 10, 2025. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2024-31750 (PODS Case #C-030532; CCRB Case #202304412) against Police Officer Brian Ferguson, Tax #938470, with the recommendation that the Charges and Specifications against Police Officer Ferguson be dismissed and that Police Officer Ferguson receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**



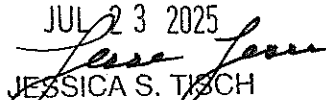
Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/pk

APPROVED

JUL 23 2025



JESSICA S. TISCH

POLICE COMMISSIONER